



Danone - MADE

MN-55031

Phase 1 Determination

Acquisition may be put into effect

26 August 2026

1. Determination

Notified acquisition	Danone S.A. (together with its subsidiaries, Danone)’s proposed acquisition of 100% of the share capital in Tucker Holdco Pty Ltd (together with its subsidiaries, MADE). In parallel with Danone’s acquisition of MADE, MADE proposes to acquire the remaining 50% of shares that it does not already own in Made (MJV) Pte. Ltd. (Made JV). Danone will acquire both MADE and Made JV (together, the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Danone, is a global food-products corporation. In Australia, Danone supplies dairy-based yoghurt under brands such as Activia, Liddells, Ultimate and YoPro, specialised nutrition solutions under its Nutricia brand (including Aptagrow, Aptamil, Forti Juice, Fortini, Fortisip, Karicare, Loprofin, Souvenaide) and bottled plain water under its Evian brand. The target, MADE, is an Australian food and beverages company headquartered in Melbourne, Australia. MADE supplies dairy-based products under the Rokeby brand, coconut-based beverages and yoghurt under the Cocobella and Nakula brands, pressed juices under the Impressed Juices brand, and flavoured multi-vitamin bottled water under the NutrientWater brand. Made JV is a joint venture owned by MADE and Magna Access Co. Ltd, an entity associated with Thailand-based food products manufacturer Chabaa Group. Made JV is based in Thailand and manufactures coconut-based products exclusively for MADE.
Overlap and relationship between the Parties	Danone and MADE overlap in the supply of yoghurt products.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.

	▪ The market share aggregation resulting from the Acquisition is estimated to be low in the supply of dairy and non-dairy yoghurt. ▪ Post-Acquisition, the merged entity would continue to face competition from alternative suppliers of dairy and non-dairy yoghurt in Australia, including Bega, Chobani, Coyo, Lactalis, Raw C and Vitasoy.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**